

Liver and Liberty: Foie Gras Between Cruelty Law and Cultural Heritage

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On a limestone wall in the tomb of Mereruka at Saqqara, carved nearly 4,500 years ago, servants can be seen pinning geese by the neck and pushing grain down their throats to swell the birds' livers before slaughter. The practice migrated from Egypt through medieval Jewish kitchens, where duck and goose fat replaced the pork lard forbidden by kashrut, before French aristocrats claimed it as a national dish.¹ By the time foie gras became shorthand for French haute cuisine, its origins as someone else's dietary workaround had been mostly forgotten. In 2012, California made it a crime to sell foie gras produced by force-feeding, and this ancient dish, having already survived one act of cultural reinvention, found itself at the center of another.

California's Health and Safety Code section 25982 does not mention France, ducks, or fine dining. It bans the sale of any product "the result of force feeding a bird for the purpose of enlarging the bird's liver beyond normal size," full stop.² The law grew from the same reasoning behind bans on battery cages and gestation crates: that some methods of raising animals for food cause suffering disproportionate to any culinary benefit. Foie gras producers sued for a decade, arguing the ban was preempted by federal poultry law and burdened interstate commerce unconstitutionally. Each time, the Ninth Circuit disagreed, holding that "the sales ban is not discriminatory, so the statute does not impose an undue burden on that basis" — a ruling about a method of production, not a national cuisine.³

¹ Norman Kolpas, *Foie Gras: A Global History* (London: Reaktion Books, 2021).

² Cal. Health & Safety Code § 25982 (West 2012).

³ *Ass'n des Éleveurs de Canards et d'Oies du Québec v. Bonta*, No. 20-55882, slip op. at 20 (9th Cir. May 6, 2022).

France did not see it that way. When the case reached the Supreme Court, the French government filed a brief arguing that foie gras is “part of the cultural and gastronomic heritage protected in France,” and that California’s ban amounted to “an assault on French culture and tradition.”⁴ That argument has legal teeth at home: since 2006, French law has formally declared foie gras part of the nation’s protected cultural and gastronomic patrimony.⁵ In France, foie gras is not merely legal; it is legislated heritage. In California, it is legislated cruelty. The Supreme Court declined to referee between the two, denying certiorari in May 2023 and leaving both statutes standing, each fully valid within its own border.⁶

What the dispute really reveals is less about ducks than about who gets to define “culture” in law. France’s statute treats heritage as something a state can certify and protect; California’s treats animal welfare as a value that overrides any heritage claim, however old. Both laws assume food practices carry meaning worth legislating; they simply disagree about which meaning should win. Forty-five hundred years after Mereruka’s servants first pinned down a goose, the argument over what may be done to its throat has only changed languages.

⁴ Joe Kukura, “Supreme Court Upholds California Foie Gras Ban,” *SFist*, May 22, 2023, <https://sfist.com/2023/05/22/supreme-court-upholds-california-foie-gras-ban/>.

⁵ Code rural et de la pêche maritime [C. rur.] art. L654-27-1 (Fr.), inserted by Loi 2006-11 du 5 janvier 2006, art. 73, Journal Officiel de la République Française [J.O.] [Official Gazette of France], Jan. 6, 2006.

⁶ Kukura, “Supreme Court Upholds California Foie Gras Ban.”

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Appendix: Relevant Regulations

California Health and Safety Code, Division 20, Chapter 13.4 (§§ 25980–25984), “Force Fed Birds”

§ 25982. A product may not be sold in California if it is the result of force feeding a bird for the purpose of enlarging the bird’s liver beyond normal size (force feeding).

§ 25981(a). “Force feed” means to feed a bird any substance through a tube or other device inserted down a bird’s throat for the purpose of enlarging the bird’s liver beyond normal size.

Enacted by S.B. 1520 (2004); effective July 1, 2012.

French Code rural et de la pêche maritime, Article L654-27-1

“Le foie gras fait partie du patrimoine culturel et gastronomique protégé en France. On entend par foie gras, le foie d’un canard ou d’une oie spécialement engraisé par gavage.”

(“Foie gras is part of the cultural and gastronomic heritage protected in France. Foie gras is understood to mean the liver of a duck or goose specially fattened by gavage.”)

Inserted by Loi n° 2006-11 du 5 janvier 2006 d’orientation agricole, art. 73.